



**University of
East London**

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Module code: LA 6070

Module Name: Professional Standards and Ethics

Student Number: [REDACTED]

Question:1

Introduction:

Solicitors are held to high professional and ethical standards to maintain public confidence in the legal profession. These standards, set out in the **Solicitors Regulation Authority (SRA) Principles (2019) and Code of Conduct for solicitors (2019)**, require solicitors to act with integrity, uphold the rule of law, and protect the trust placed in their profession. This case concerns about a solicitor who filed a defence with the County Court that was factually incorrect and misleading. Despite being notified of the inaccuracies, he failed to take corrective action, allowing the case to proceed. The following analysis examines his actions against the relevant SRA Principles and Code provisions, apply case law to highlight the breaches, and assess the likely consequences of his misconduct.

The allegations made against the solicitor are as follows:

1. **Principle 1:** Solicitors must uphold the rule of law and ensure the proper administration of justice.
2. **Principle 2:** Solicitors are required to act with integrity, maintaining ethical and honest behaviour in all professional dealings.
3. **Principle 6:** Solicitors must ensure public trust and confidence in the profession is maintained.

Additionally, the solicitor's conduct breaches the following provisions of the **SRA Code of Conduct**:

1. **Paragraph 1.4:** Prohibits solicitors from misleading the court or allowing others to be misled.
2. **Paragraph 7.2:** Requires solicitors to justify their decisions and demonstrate compliance with professional obligations.

Relevant SRA Principles and Code of Conduct Breaches¹

1. Principle 1: Upholding the Rule of Law

- **Breach:** Solicitors must uphold the rule of law and ensure the proper administration of justice. By allowing the misleading defence to proceed uncorrected, the solicitor undermined the court's ability to deliver a fair judgment.
- **Case Law:** In **Bolton v Law Society [1994]**, the court emphasised that dishonesty disrupts the integrity of the legal system. Similarly, the solicitor's inaction in this case compromised the administration of justice, a fundamental breach under Principle 1.²

2. Principle 2: Acting with Integrity

¹ <https://www.sra.org.uk/solicitors/standards-regulations/code-conduct-solicitors>

² Bolton v Law Society [1994] 1 WLR 512 (CA).

- **Breach:** Solicitors are required to act with integrity in all their professional dealings. Neglecting to correct the defence, even after being notified of its inaccuracies, demonstrates a lack of honesty and ethical responsibility.
- **Case Law:** In **SRA v Wingate & Evans [2018]**, the Court of Appeal defined integrity as more than mere honesty, requiring consistent ethical behaviour. The solicitor's conduct mirrors the failings highlighted in *Wingate*, where neglecting ethical responsibilities undermined public trust.³

3. Principle 6: Maintaining Public Trust

- **Breach:** Solicitors must act in a way that maintains public confidence in the profession. By failing to amend a misleading document, the solicitor risked eroding the trust placed in solicitors to act professionally and ethically.
- **Case Law:** In **SRA v Martin Lewis (2020)**, the submission of backdated documents diminished public trust, resulting in striking off. This case shares parallels with the current scenario, where similar dishonest behaviour jeopardises the profession's reputation.⁴

SRA Code of Conduct Breaches

1. **Paragraph 1.4: Misleading the Court**
Solicitors are prohibited from misleading the court or permitting others to be misled. Filing an inaccurate defence and failing to correct it breached this rule. As demonstrated in *Wingate*, misleading the court is a fundamental ethical violation.⁵
2. **Paragraph 7.2: Justification of Actions**
Solicitors must justify their actions and demonstrate compliance with professional obligations. Similar to **SRA v James [2018]**, where a solicitor's dishonest actions were deemed indefensible, this solicitor's failure to rectify the defence cannot be justified under professional standards.⁶

Likely Consequences:

The likely outcome for this solicitor is **striking off** the roll. The Solicitors Disciplinary Tribunal (SDT) consistently treats dishonesty as incompatible with legal practice. According to the **SDT Guidance Note on Sanctions**, striking off is the default sanction for breaches involving dishonesty unless exceptional circumstances exist.

- **Mitigating Factors:** Factors such as remorse or self-reporting may be considered. However, as seen in **SRA v James**, even compelling personal circumstances rarely prevent striking off in cases of dishonesty.⁷

³ Solicitors Regulation Authority v Wingate & Evans [2018] EWCA Civ 366.

⁴ Solicitors Regulation Authority v Martin Lewis [2020] SDT 12069-2020.

⁵ SRA Code of Conduct for Solicitors (2019), para 1.4.

⁶ Solicitors Regulation Authority v James [2018] EWHC 3058 (Admin).

⁷ SDT Guidance Note on Sanctions (10th ed., 2022).

- **Precedents:** In Bolton, Wingate, and Martin Lewis, dishonesty led to severe sanctions, underscoring the profession's strict stance on maintaining integrity and trust.

Conclusion:

The solicitor's actions filing and failing to correct a misleading defence constitute significant breaches of professional and ethical obligations. Based on the SRA Principles, Code of Conduct, and case law, **striking off** is the most appropriate sanction. This decision reflects the legal profession's commitment to preserving integrity, public confidence, and the proper administration of justice.

Question 2:

This case concerns a solicitor who, over several years, failed to disclose her ownership of properties while bidding for and ultimately accepting social housing. At her sentencing for fraud, she expressed sincere remorse and explained that during this period, she had been struggling with mental health issues due to the death of her child and stress at work. This case raises serious ethical concerns and breaches of professional obligations under the **Solicitors Regulation Authority (SRA) Principles (2019)** and the **SRA Code of Conduct for Solicitors (2019)**.

The allegations made against the solicitor are as follows:

1. **Failed to act with integrity**, in breach of **Principle 2** of the SRA Principles.
2. **Failed to uphold the rule of law and proper administration of justice**, in breach of **Principle 1**.
3. **Failed to maintain public trust and confidence in the legal profession**, in breach of **Principle 6**.
4. **Failed to avoid conflicts of interest**, in breach of **Principle 4**.

These allegations form the basis for evaluating her actions against relevant legal standards and determining the likely consequences.

Relevant SRA Principles and Code of Conduct Breaches

1. Principle 1: Upholding the Rule of Law

- **Breach:** Solicitors must uphold the rule of law and ensure the proper administration of justice. By failing to disclose her property ownership while bidding for social housing, the solicitor acted dishonestly, undermining the integrity of the legal system.
- **Case Law:** In **Solicitors Regulation Authority v Dennison [2013] EWHC**, a solicitor's failure to meet disclosure obligations and misuse of position for personal gain demonstrated a clear breach of the rule of law. Similarly, the solicitor's dishonesty in this case compromises the proper administration of justice.⁸

⁸ Solicitors Regulation Authority v Dennison [2013] EWHC 3691 (Admin).

2. Principle 2: Acting with Integrity

- **Breach:** Acting with integrity is fundamental to a solicitor's professional obligations. By failing to disclose her property ownership, the solicitor acted dishonestly, prioritising personal benefit over ethical standards.
- **Case Law:** In **Solicitors Regulation Authority v Sharma [2010]**, dishonesty in private dealings was treated as seriously as professional misconduct, leading to striking off. This demonstrates that integrity must be upheld in both personal and professional contexts, regardless of external pressures.⁹

3. Principle 6: Maintaining Public Trust

- **Breach:** The solicitor's fraudulent actions risked eroding public confidence in the legal profession. The public expects solicitors to act honestly, even in their private dealings.
- **Case Law:** In **Solicitors Regulation Authority v Beckwith [2020]**, the tribunal emphasised that private actions undermining public trust are as damaging as breaches within professional contexts. Similarly, the solicitor's conduct here jeopardises the reputation of the profession.¹⁰

4. Principle 4: Avoiding Conflicts of Interest

- **Breach:** Solicitors must avoid situations where personal interests conflict with their professional duties. By failing to disclose her property ownership while seeking social housing, the solicitor prioritised her personal needs over legal and ethical obligations.
- **Case Law:** In **Solicitors Regulation Authority v McCarthy [2015]**, a solicitor's failure to avoid conflicts of interest led to their striking off. This case closely parallels the solicitor's actions in this scenario, where undisclosed interests compromised ethical responsibilities.¹¹

SRA Code of Conduct Breaches

1. Paragraph 1.2: Abuse of Position¹²

Solicitors must not abuse their position for personal benefit. The solicitor's actions, prioritising personal housing needs over ethical standards, breached this rule.

2. Paragraph 7.2: Justification of Actions

Similar to the solicitor in James, this solicitor's failure to justify her actions, even under mitigating circumstances, reflects a breach of professional obligations.

3. Paragraph 7.7: Reporting Serious Breaches

The solicitor failed to self-report her misconduct to the SRA. This omission constitutes a further breach of the Code, as solicitors are required to report any behaviour that may amount to serious misconduct.

The solicitor is likely to face **striking off**, as fraud and dishonesty are treated with zero tolerance by the Solicitors Disciplinary Tribunal (SDT). The **SDT Guidance Note on Sanctions (10th ed., 2022)** highlights dishonesty as one of the most serious breaches, with striking off being the default sanction unless exceptional circumstances exist.

⁹ Solicitors Regulation Authority v Sharma [2010] EWHC 2022 (Admin).

¹⁰ Solicitors Regulation Authority v Beckwith [2020] EWHC 3231 (Admin).

¹¹ Solicitors Regulation Authority v McCarthy [2015] EWHC 2797 (Admin).

¹² SRA Code of Conduct for Solicitors (2019), para 1.2.

- **Mitigating Factors:** The solicitor's mental health struggles and expressions of remorse may be considered as mitigating factors. However, as seen in *SRA v James and Bolton*, such circumstances rarely prevent striking off in cases involving dishonesty.
- **Public Interest:** Striking off would protect the public and maintain trust in the profession by demonstrating that fraudulent behaviour is not tolerated, regardless of personal circumstances.

Conclusion

The solicitor's failure to disclose her property ownership, resulting in a conviction for fraud, constitutes significant breaches of professional and ethical standards. Based on the SRA Principles, Code of Conduct, and relevant case law, **striking off** is the most appropriate sanction.

Task 2:

Self reflection:

When I first began this module on Professional Standards and Ethics, I had no idea how much it would shape my understanding of the legal profession. I remember feeling a mix of excitement and apprehension in the first lecture as my professor, with their captivating style, introduced us to the world of legal ethics. Over the weeks, I've not only learned valuable concepts but also grown personally and professionally, connecting theory to real-life applications in ways that were both challenging and rewarding.

Reflection on Weekly Topics:

1. **Introduction to Ethical Theories:** The exploration of ethical theories such as utilitarianism, deontology, and virtue ethics was a significant starting point. These theories provided a framework to evaluate moral questions, not just within legal practice but in everyday decision-making. For example, during my part-time, I began applying utilitarian principles to resolve scheduling conflicts in a way that maximised team satisfaction while meeting customer needs. This approach underscored the dynamic relationship between law, morality, and ethics and instilled a sense of responsibility to align my actions with principles of justice and fairness.
2. **Social Context of the Legal Profession:** Learning about the societal role of lawyers illuminated the profession's broader purpose beyond individual client representation. The discussions about professionalism, equality, and access to justice encouraged me to reflect on how lawyers can drive societal change. This lecture influenced my decision to volunteer at the University of East London Legal Advice Centre, where I witnessed firsthand the importance of providing accessible legal services to underrepresented communities. It reinforced my understanding that ethical behaviour fosters trust and respect, essential attributes for any legal professional.
3. **Regulatory Bodies:** The insights into the Solicitors Regulation Authority (SRA) and Bar Standards Board (BSB) were invaluable in understanding accountability mechanisms within the legal profession. These regulatory frameworks highlighted the importance of compliance and ethical conduct. For instance, during my paralegal internship, I frequently referenced the SRA's code of conduct to ensure my actions aligned with professional expectations, particularly when assisting with client documentation. This practical application deepened my appreciation for the role of regulatory bodies in maintaining public trust.
4. **Lawyer-Client and Third-Party Relationships:** This topic offered profound insights into fiduciary duties and client-centred relationships. The emphasis on building trust and transparency resonated deeply with me. For example, while participating in university mock trials, I applied these principles by prioritising clear and honest communication with team members and clients, ensuring everyone's needs were addressed fairly. This experience underscored the importance of empathy and transparency in fostering effective relationships, both professionally and personally.

5. **Confidentiality:** Understanding the principle of confidentiality highlighted the critical role trust plays in professional relationships. Beyond academic learning, this principle influenced my approach to handling sensitive information during my internship. For instance, while assisting a solicitor with a property case, I ensured that client data was managed securely and discussed only within authorised settings. Drawing inspiration from *Three Rivers District Council v Bank of England*, I recognised that maintaining confidentiality is not merely a legal obligation but a cornerstone of ethical practice.
6. **Conflicts of Interest:** This lecture prompted me to consider the ethical dilemmas arising from competing obligations. The discussions reinforced the importance of impartiality and fairness. For example, while managing overlapping commitments between my studies and part-time job, I developed strategies to balance priorities without compromising on quality or fairness. Avoiding even the perception of bias has become a guiding principle, particularly during my role as a barrister for the prosecution in university jury trials. This experience honed my ability to navigate complex situations with integrity.
7. **Fees:** The exploration of billing practices and fairness was eye-opening. It underscored the necessity of transparency in financial dealings. For example, while discussing payment-related concerns during my internship, I ensured that clients were provided with detailed explanations of costs. Reflecting on a case study where inflated photocopying fees led to disputes, I recognised the importance of clarity and fairness in building trust. These lessons have shaped my understanding of the ethical challenges surrounding legal fees.
8. **Business Ethics:** The concept of corporate social responsibility (CSR) expanded my perspective on ethical considerations within businesses. Watching the documentary *The Corporation* highlighted the tension between profit motives and ethical responsibilities, inspiring me to advocate for sustainable practices in my workplace. For instance, I initiated a recycling programme at Burrito Kitchen, demonstrating that small changes can contribute to broader ethical goals. This alignment of business ethics with professional values resonated deeply with my aspirations to promote socially responsible practices in my future legal career.
9. **Alternative Dispute Resolution (ADR):** The ethical dimensions of ADR, including mediation and arbitration, emphasised collaboration, and empathy in resolving conflicts. For example, in a university group project, I used ADR-inspired techniques to mediate a disagreement among team members. By fostering constructive dialogue and encouraging compromise, we achieved a fair and effective resolution. This experience reinforced the importance of ADR principles in promoting equitable outcomes, aligning with my goal of facilitating justice outside traditional courtroom settings.
10. **Litigation:** Discussions on litigation, advocacy, and ethical challenges reinforced my commitment to integrity in legal practice. Understanding the duties owed to the court and clients encouraged me to prioritise truthfulness and objectivity. During my first advocacy trial at university, I drew on these principles to present a well-reasoned and ethically sound argument. This experience highlighted the balance between zealous advocacy and ethical obligations, a lesson I aim to carry forward in my legal career.

The Role of My Professor in Shaping My Learning

A pivotal influence during this module was my professor Vick, whose teaching style profoundly shaped my understanding of ethics and professionalism. His ability to bridge theoretical concepts with real-world applications made the lessons engaging and impactful. Their resignation during the middle of semester was a moment of reflection, underscoring the importance of self-reliance and adaptability in my learning journey. Their guidance remains a source of inspiration as I navigate ethical challenges in my academic and professional pursuits.

Practical Engagement and Personal Growth

To deepen my understanding, I engaged in several activities outside the classroom. For example, I attended the online seminar "Ethics in Modern Legal Practice," which explored contemporary challenges faced by lawyers, such as the ethical implications of emerging technologies. Watching the documentary *The Trial of Ratko Mladic* provided insights into the ethical considerations of international litigation, reinforcing the importance of advocacy integrity. Conversations with practicing solicitors during my internship also offered valuable perspectives on balancing professional codes with real-world constraints.

This module also enhanced my personal growth in several ways:

- **Critical Thinking:** I now approach problems with a structured mindset, analysing situations from multiple angles before reaching conclusions. For example, I used these skills to evaluate conflicting evidence during a mock trial, ensuring that my arguments were well-supported and balanced.
- **Empathy and Judgment:** Engaging with ethical theories has made me more empathetic and thoughtful. This has influenced my interactions with clients during my internship, where I strive to understand their perspectives while maintaining professional boundaries.
- **Communication:** Active participation in seminars improved my ability to articulate ideas clearly and listen attentively. For instance, presenting on ethical dilemmas in ADR enhanced my confidence in public speaking and fostered meaningful discussions with peers.

Forward-Looking Reflection

The knowledge and skills acquired through this module have significantly influenced my aspirations. As a future barrister, I aim to uphold the highest ethical standards by prioritising client-centred relationships and promoting fair dispute resolution. The principles of ADR, confidentiality, and fiduciary duties will guide my practice, ensuring that I provide compassionate and effective legal services. For instance, I plan to leverage ADR techniques to facilitate equitable settlements in family law disputes, minimising the emotional and financial toll on clients.

These lessons also extend to my personal life, where fairness, integrity, and empathy will remain core values. By fostering a reflective mindset, I feel better equipped to navigate complex ethical dilemmas with confidence. This module has reaffirmed my desire to make a

positive impact within the legal profession and beyond, contributing to a just and equitable society.

The **Mental Wealth: Professional Standards and Ethics** module has been a transformative journey, intertwining academic insights with personal development. Through active engagement with lectures, practical applications, and reflective practices, I have gained a comprehensive understanding of ethics and professionalism. These experiences, coupled with the profound influence of my professor, have shaped my perspective and commitment to integrity. I am confident that the knowledge and skills acquired from this module will continue to guide me as I pursue my aspirations, ensuring that I remain a principled and thoughtful professional.